

EMPLOYEE ASSISTANCE PROGRAM AGREEMENT

This Employee Assistance Program Agreement (AGREEMENT) is made and entered into by and between **CITY OF CHEYENNE**, located at 2101 O'Neil Avenue, Cheyenne, Wyoming (CUSTOMER) and **CAREBRIDGE CORPORATION**, a Pennsylvania Corporation located at 855 Springdale Drive, Exton, Pennsylvania (CONTRACTOR).

Whereas, CONTRACTOR makes available an employee assistance program ("EAP") including work-life assistance services ("WLAS"); and,

Whereas, CUSTOMER desires to make an EAP available to its employees; and,

Whereas, CUSTOMER desires to contract with CONTRACTOR to provide an EAP for CUSTOMER's employees and CONTRACTOR desires to provide such EAP to CUSTOMER; and,

Whereas, the Parties desire to enter into this Agreement in order to provide a full statement of their respective responsibilities in connection with the provision of an EAP during the term of this Agreement.

NOW THEREFORE, in consideration of the mutual promises and covenants contained herein, and intending to be legally bound hereby, it is understood and agreed by the parties as follows:

1. DEFINITIONS:

- 1.1 COVERED EMPLOYEE shall mean any employee of the CUSTOMER included in an eligibility file provided to CONTRACTOR by CUSTOMER. Employees on Leave of Absence for FMLA, Short-term Disability, Military Leave and Workers' Compensation are also recognized as COVERED EMPLOYEES if included on the CUSTOMER-provided eligibility file.
- 1.2 COVERED PERSON shall mean any COVERED EMPLOYEE and any related individual residing within the household of the COVERED EMPLOYEE as well as children living outside the household to age twenty-six (26). A COVERED PERSON may have the option to continue the EAP benefit through COBRA, if the option is made available by CUSTOMER.
- 1.3 PROVIDER shall mean a third party designated by the CONTRACTOR to provide EAP services.
- 1.4 COVERED SERVICES shall mean all related employee assistance services rendered to a COVERED PERSON to the extent that such services are for the evaluation of, and counseling for, personal and psychological problems. The services described herein are available, at no cost, to COVERED PERSONS.

- 1.5 CISD shall mean critical incident stress debriefing. A debriefing is a proactive intervention involving a group meeting or discussion about a particularly distressing critical incident. It is designed to mitigate the impact of a critical incident and assist in recovery from the stress associated with the event. CISD services are ideally conducted between 24 and 72 hours after the incident.
- 1.5.1 Standard Response: Any next day response that is not considered immediate or same day.
 - 1.5.2 Same Day Response: Requests that are over three hours and less than 24 hours from scheduled response.
 - 1.5.3 Immediate Response: Requests that are within three hours of scheduled response. Response scheduled after 11pm or before 9am the next day in the service area time zone.
- 1.6 OCCURRENCE shall mean the presentation of a specific set of problem issues.

2. CONTRACTOR RESPONSIBILITIES:

- 2.1 Maintain a case management system to assess, review and coordinate the delivery of COVERED SERVICES by PROVIDERS to COVERED PERSONS seeking program services.
- 2.2 Maintain a readily accessible network of mental health professionals who will provide COVERED SERVICES to COVERED PERSONS under this Agreement. The Program will provide up to five (5) consultations per OCCURRENCE and will continue to provide telephonic coaching throughout the contract term.
- 2.3 Assist in the introduction of the EAP for the CUSTOMER and provide supporting information for the program. This support shall include working with CUSTOMER's management and appropriate staff such as persons engaged in human resources, medical and public relations functions for CUSTOMER.
- 2.4 Provide twenty-four-hour, seven day per week, emergency access by phone with Counselors available for in-person consultation during normal business hours and in the evening and for urgent needs on weekends and holidays.
- 2.5 Provide orientation sessions for CUSTOMER management and supervisory personnel to present the program as a management tool.
- 2.6 Provide personal and psychological consultation to COVERED PERSONS through face-to-face interviews and/or scheduled phone consultations. Such assistance will be in response to supervisor, management, or self-referrals and will be conducted on a basis convenient to the clients involved. Assistance shall include initial assessment and short-term directive counseling up to a maximum of five (5) consultations per OCCURRENCE. Any costs incurred as a result of a referral beyond or outside of included EAP services will be the responsibility of the individual COVERED PERSON and/or their insurance. Problem assistance shall include counseling, referral and information in matters related to:
 - 2.6.1 Marital and other relationship problems.
 - 2.6.2 Drug, alcohol and other substance abuse concerns.

- 2.6.3 Emotional difficulties and mental illness.
 - 2.6.4 Generalized and work-related stress.
 - 2.6.5 Child, parent and family concerns.
 - 2.6.6 Issues of grief and loss.
 - 2.6.7 Financial and legal pressures/problems.
 - 2.6.8 Other behavioral and mental health concerns.
- 2.7 Where indicated, refer COVERED PERSON to other agencies and individuals for assistance. In making such referrals to other agencies, due regard will be given to the appropriateness of the referrals in view of the need, location, cost, health care coverage, and available resources; also, COVERED PERSON will be advised that they, not the CUSTOMER or CONTRACTOR, shall be responsible for payment of all costs associated with assistance rendered as a result of a referral.
 - 2.8 Make available EAP consultations and/or referrals which can be used for an unlimited number of new clinical issues throughout the plan year. Reauthorization of EAP short-term directive counseling sessions for the same issue can be requested by members twelve months from the date of the last EAP session used for that particular issue. The distinction of a case as a “new issue” or the “same issue” will be based on the presenting clinical symptoms.
 - 2.9 Make available legal services to COVERED PERSONS needing to retain an attorney. A referral will be provided and the COVERED PERSON will receive one free 30-minute consultation with that attorney, in addition to a 25% discount on any further services. Referrals are made to local, pre-screened and credentialed attorneys.
 - 2.10 Offering COVERED PERSONS one free 30-minute financial consultation with a financial specialist by phone each year. A discount of up to 25% is available if additional consultations are desired.
 - 2.11 Provide employee-focused program features as set forth in ADDENDUM B.
 - 2.12 CONTRACTOR will make life coaching services available to COVERED PERSONS providing up to six (6) telephonic consultation sessions per year.
 - 2.13 Upon request, consult with the CUSTOMER’s individual managers and/or supervisors regarding potential referral of an employee to the Program plus ongoing consultation with managers within legally imposed requirements of confidentiality.
 - 2.14 Provide critical incident response including unlimited telephonic and/or videoconference consultation with a trauma specialist, defusing, and support as required plus telephonic outreach and post-incident guidance. Clinically appropriate and necessary onsite and live video CISD’s can be purchased at request of CUSTOMER at the following rates:
 - 2.14.1 Standard CISD’s: \$225 per live video or onsite hour plus travel.
 - 2.14.2 Same Day Response: \$270 per live video or onsite hour plus travel.
 - 2.14.3 Immediate Response: \$300 per live video or onsite hour plus travel.

Cancellation Fee: If four hours or less scheduled, fee will be \$350. If more than four hours scheduled, fee will be \$500.

- 2.15 Upon request, CONTRACTOR will provide assistance and consultation to CUSTOMER in fitness-for-duty cases. CONTRACTOR's involvement in providing these services is limited to assisting the CUSTOMER in determining whether a fitness-for-duty evaluation by an independent third party might be appropriate and providing assistance with finding providers to complete the formal evaluation if requested. All costs for fitness-for-duty evaluations and related services will be borne by the CUSTOMER or employee based on CUSTOMER's policies.
- 2.16 Provide ongoing professional telephone consultation for work-life needs as set forth in ADDENDUM A on a seven (7) day per week, twenty-four (24) hour per basis year around.
- 2.17 Make available during each year of the term of AGREEMENT twenty-eight (28) trainings consisting of sixteen (16) prescheduled online monthly/quarterly campaign web-based e-trainings and twelve (12) prescheduled live webinars selected by CONTRACTOR.

Additional trainings, seminars and fairs (online or onsite) are available from CONTRACTOR's catalog of over sixty (60) developed training topics at the per hour rate of \$400 plus travel for seminars, \$325 for webinars and \$80 for fairs. Customization of seminars/webinars is available at \$150 per design hour.

- 2.18 CONTRACTOR to provide the following services regarding substance abuse cases:
 - 2.18.1 Initiate referrals to providers maintaining their Substance Abuse Professional (SAP) credential in all cases involving DOT violations.
 - 2.18.2 Provide identification and coordination of certified SAP's to CUSTOMER.
 - 2.18.3 Administratively and clinically coordinate care and provide case management throughout the SAP evaluations; and
 - 2.18.4 Provide notification of compliance or non-compliance.
 - 2.18.5 Provide Department of Transportation (DOT) SAP referrals. Such referrals will be provided at a rate of \$350 per case.
 - 2.18.6 All DOT/SAP evaluations with their related costs will be borne by CUSTOMER or employee based on CUSTOMER policies to fulfill DOT requirements.
 - 2.18.7 CONTRACTOR has no further administrative, clinical or financial responsibility for additional services regarding DOT/SAP referrals.
- 2.19 Provide electronic workplace communications to CUSTOMER for distribution and including service explanatory videos, informational brochures, wallet cards, web site information, posters, and copy for employee newsletters.
- 2.20 Provide CUSTOMER, on a quarterly basis, a report on the progress of Employee Assistance Program activities including number of persons served, client

demographics, types of cases dealt with, and referrals made. Reports shall not include confidential information regarding individual clients served.

- 2.21 Represent and warrant that all counseling service referrals will be made to duly qualified and licensed mental health professionals, psychologists, social workers, and certified employee assistance professionals (CEAPs).
- 2.22 Shall comply with applicable federal and state laws concerning preservation of confidentiality of information, including but not limited to HIPAA, relating to COVERED PERSONS' receiving Covered Services pursuant to the terms of this Agreement.
- 2.23 Maintain general and professional liability insurance as specified in Section 6 of this Agreement and provide CUSTOMER proof of same upon request.

3. CUSTOMER RESPONSIBILITIES:

- 3.1 Provide such facilities as may be necessary for planning and evaluation meetings, group orientation sessions, and individual conferences with managers, supervisors and employees.
- 3.2 Assume responsibility for scheduling and notifying its managers, supervisors of such meetings.
- 3.3 Guide and participate in an active program of communication related to the availability of the Program to employees, their managers, and supervisors.
- 3.4 Assist with internal and external publicity and communications appropriate to establish and maintain the program.
- 3.5 Designate a representative of CUSTOMER to be the liaison/coordinator of the Program who shall work cooperatively with the CONTRACTOR and represent the CUSTOMER to the CONTRACTOR in the day-to-day contacts regarding services covered by this Agreement.
- 3.6 Provide an eligibility file of its COVERED EMPLOYEES to CONTRACTOR, updated on a quarterly basis. Eligibility file should not include any PHI or financial information. Eligibility file should include only the following:
 - 3.6.1 Employee Name
 - 3.6.2 Employee Address
 - 3.6.3 If applicable: Region/Division and/or Location/Worksite
- 3.7 If CONTRACTOR's performance of its obligations under this agreement is prevented, impeded, or delayed by any act or omission of CUSTOMER or its agents, subcontractors, consultants, or employees, CONTRACTOR shall not be deemed in breach of its obligations under this agreement or otherwise liable for any costs, charges, or losses sustained or incurred by CUSTOMER, in each case, to the extent arising directly or indirectly from such prevention, impediment or delay.
- 3.8 Provide a copy of the CUSTOMER's Substance Abuse Policy to the CONTRACTOR and ensure that such policy is in accordance with any and all applicable laws.

4. FEES FOR SERVICES:

- 4.1 In consideration of CONTRACTOR's services to be provided hereunder, during the TERM the CUSTOMER shall pay to CONTRACTOR a fee of \$1.28 per COVERED EMPLOYEE per month, the total amount of such fee shall be as determined by multiplying the fee specified above by the total number of COVERED EMPLOYEES in the CUSTOMER-provided quarterly eligibility file.
- 4.2 CONTRACTOR reserves the right to request a renegotiation of the then-effective service fee if the annual increase in the Producer Price Index for Selected Health Care Industries (Series ID: PCUASHC—ASHC--) published by the US Department of Labor's Bureau of Labor Statistics for the prior twelve-month period increase by more than 3.0%.
- 4.3 Payments of quarterly contractual fees shall be due on the first day of each quarter of contract service at the CONTRACTOR's office, 855 Springdale Drive, Suite 200, Exton, PA 19341.

5. TERM AND TERMINATION:

- 5.1 TERM of CONTRACTOR's services hereunder shall commence on July 1, 2023 and shall cover a period of thirty-six (36) months ending June 30, 2026.
- 5.2 This Agreement may be terminated by either party upon forty-five (45) days' prior written notice of intent to terminate due to the other party's committing a material breach of the Agreement. In the event the breaching party cures the breach within thirty (30) days after receiving such notice, this Agreement shall not terminate.
- 5.3 Termination by either party, without cause, may be accomplished by giving written notice to the other party of at least ninety (90) days prior to the date of such termination. CUSTOMER's sole obligation shall be to pay CONTRACTOR quarterly fees through the ninety (90) days after notification of intent to terminate without cause. Such termination shall constitute a full and final discharge of all obligations of CONTRACTOR and CUSTOMER.
- 5.4 Suspension of Services: CONTRACTOR reserves the right to suspend or terminate access to programs included in Addendum B upon ninety (90) days' written notice if, in CONTRACTOR's judgment, such services cease to be available on commercially reasonable terms from its third-party vendors. If CONTRACTOR elects to suspend or terminate such services, the remaining provisions of this Agreement will remain in full force and effect, except that CONTRACTOR will adjust its contractual fees pro rata to reflect the suspension or termination of the service or services.

6. INSURANCE AND INDEMNIFICATION:

- 6.1 CONTRACTOR agrees to carry and keep in force at all times general liability insurance with limits of liability of no less than \$1,000,000 per occurrence and \$3,000,000 aggregate. The CONTRACTOR shall, upon request, provide CUSTOMER with a Certificate of Insurance evidencing the required coverage.
- 6.2 As allowed by law, each party (INDEMNIFYING PARTY) agrees to defend and indemnify the other party, its affiliates and their respective officers, directors and

employees (INDEMNIFIED PARTY) from any claims, losses, damages, liabilities, or expenses (including court costs and reasonable attorney's fees) arising out of or resulting from the negligent or willful act or omission or breach of this Agreement by INDEMNIFYING PARTY or its officers, directors, employees, or agents, but only if INDEMNIFIED PARTY has not, by act or failure to act, materially jeopardized the position of INDEMNIFYING PARTY with respect to the resolution or defense of the claim. INDEMNIFIED PARTY must promptly notify INDEMNIFYING PARTY upon receipt of notice of any claim or lawsuit and must permit INDEMNIFYING PARTY'S authorized attorneys and personnel to handle and control the defense of any such claim or lawsuit. INDEMNIFIED PARTY agrees to fully cooperate with and aid in such defense at its own cost. INDEMNIFYING PARTY may not, without the prior written consent of INDEMNIFIED PARTY, settle or compromise any claim or consent to the entry of any judgment with respect to which indemnification is being sought hereunder unless such settlement, compromise or consent includes an unconditional release of INDEMNIFIED PARTY from all liability arising out of such claim, and does not contain any equitable order, judgment or term which in any manner affects, restrains or interferes with the business of INDEMNIFIED PARTY or any of its respective affiliates.

7. MISCELLANEOUS:

- 7.1 Independent contractor. It is expressly acknowledged hereto that the CONTRACTOR is an independent contractor and nothing in this Agreement is intended nor shall be construed to create any relationship between the CUSTOMER and the CONTRACTOR other than that of independent entities contracting with each other solely for the purpose of effecting the provisions of this Agreement or to allow CUSTOMER to exercise control or direction over the method or manner of the CONTRACTOR 's employees' performance of this Agreement.
- 7.2 Amendment. This Agreement may not be amended or revised except with the prior written consent of the other party.
- 7.3 Assignment. No party may assign its rights or obligations hereunder without the prior written consent of the other party.
- 7.4 Severability. Should any part of this Agreement be declared invalid, for any reason, the remainder shall continue in full force and be interpreted as if the invalid portion were omitted.
- 7.5 Force Majeure. Neither party shall be liable to the other for damages or monetary penalties of any kind or deemed in default under this Agreement for any failure to perform or delay in performing to the extent that its performance is hindered, delayed, or rendered impossible due to an event or occurrence beyond the reasonable control of the party, and without its fault or negligence, including, without limitation, the breakdown, malfunction or other failure of any external third party telecommunication system or other system or mechanism by which information and data is stored or transmitted.

- 7.6 Governing law. This Agreement shall be construed in accordance with the laws of the State of Wyoming.
- 7.7 Waivers. No waiver of any term, provision or condition of this Agreement whether by conduct or otherwise, in any one or more instances, shall be deemed or construed as a further or continuing waiver of any such term, provision or condition of this Agreement.
- 7.8 Entire Agreement. This Agreement contains the entire agreement of the parties regarding Employee Assistance services and there are no agreements or representations regarding Employee Assistance services which are not set forth herein. All prior negotiations, agreements and understandings are superseded hereby.
- 7.9 Gender. All terms as used in this Agreement, regardless of the number and gender in which they are used, shall be deemed to include singular and plural, masculine, feminine, or neuter, as the context or sense of this Agreement may require.
- 7.10 Nondiscrimination. The parties agree that they shall perform their respective obligations hereunder without discrimination toward any COVERED PERSON, employee or other persons regardless of their race, age, creed, color, gender, disability or ethnic background.
- 7.11 Notices. Unless otherwise provided in this Agreement, all notices required or permitted under this agreement shall be in writing and shall be deemed sufficiently provided if given by personal service or sent by registered, certified or express mail, reputable overnight courier service or facsimile with receipt confirmed as follows:

Carebridge Corporation	City of Cheyenne
855 Springdale Drive	2101 O'Neil Avenue
Suite 200	Cheyenne, WY 82001
Exton, PA 19341	
Attn: Office of the President	Attn:
Fax: (610) 993-8540	Fax:

IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorized representatives on the day and year last written below.

CONTRACTOR: Carebridge Corporation

CUSTOMER: City of Cheyenne

Signature: _____

Signature: _____

Name: John R. Betts

Name: Tammy Bartlett

Title: President

Title: Human Resources Specialist

Date: _____

Date: _____

Addendum A

Provision to COVERED PERSONS of Work-Life Services include telephonic assistance referrals, and informational resources in the following needs and concerns. Decisions made on referrals provided will be the responsibility of the COVERED PERSON.

1. Childcare resourcing and information
2. Eldercare resourcing, consultation and information
3. Parenting consulting and information
4. School Selection resourcing and consultation
5. School Success consultation and information
6. College Planning consultation and information
7. Continuing Education consultation and information
8. Adoption consultation and information
9. Time and stress management consultation and information
10. Relocation consultation and information
11. Personal financial management (not investment) consultation and information
12. Retirement planning consultation and information
13. Convenience services to assist COVERED PERSON in finding the services needed for daily living including, but not limited to, weight loss, smoking cessation, travel resources, pet services, house cleaning, event planning, etc.

Addendum B

1. **Tess Artificial Intelligence Coaching** – Provide 24/7 access to a cCBT-based artificial intelligence coach providing smartphone texting conversations to assist individuals with their emotional concerns.
2. **Thrive Being: Core** – Provide access to podcasts as well as a quarterly, on demand learning plan from the Being Learning Platform. Learning plans focus on general health and wellbeing.
3. **Thrive Mindfulness: Enhanced** – Make available a mindfulness platform featuring programs with mindful programs, apps, blogs, and trending articles on mindfulness.
4. **QuitSmart** – Provide the QuitSmart Mindfully program which includes up to 10 live online sessions, nicotine replacement therapy and other nicotine cessation supports.
5. **Carebridge EAP Smartphone App** – Make available a smart phone app offering access to resources, videos, assessments, financial calculators, health and wellness, meditation exercises, mindfulness and webinars.
6. **Carebridge Member Website** – Make available a member website, providing access to resources to help build resilience and get answers to difficult questions. Resources can also be used to supplement and enhance user's counseling experience.